



Fugio Consulting, LLC

Public Safety Research Brief

Ohio's New Grooming Law in Practice

Charged With Grooming in Ohio Every Ohioan Criminally Charged Under Ohio's New Grooming Law, ORC 2907.071

Date: October 10, 2026 | Prepared by Chris Graham & StatehouseAI

1. The Law

Ohio made **grooming** its own crime. House Bill 322, signed by Governor Mike DeWine on January 8, 2025, created Ohio Revised Code Section 2907.071 and took effect April 9, 2025. It makes it a crime for a person eighteen or older to engage in a pattern of conduct with a minor under sixteen, and at least four years younger, for the purpose of enticing, coercing, or soliciting the minor into sexual activity. The offense ranges from a misdemeanor to a felony depending on the age of the child and the offender's role, such as a parent, teacher, coach, or clergy member. Because the offense did not exist before April 9, 2025, no one could be charged with grooming in Ohio by name before that date, so this brief counts only people carrying the actual new charge.

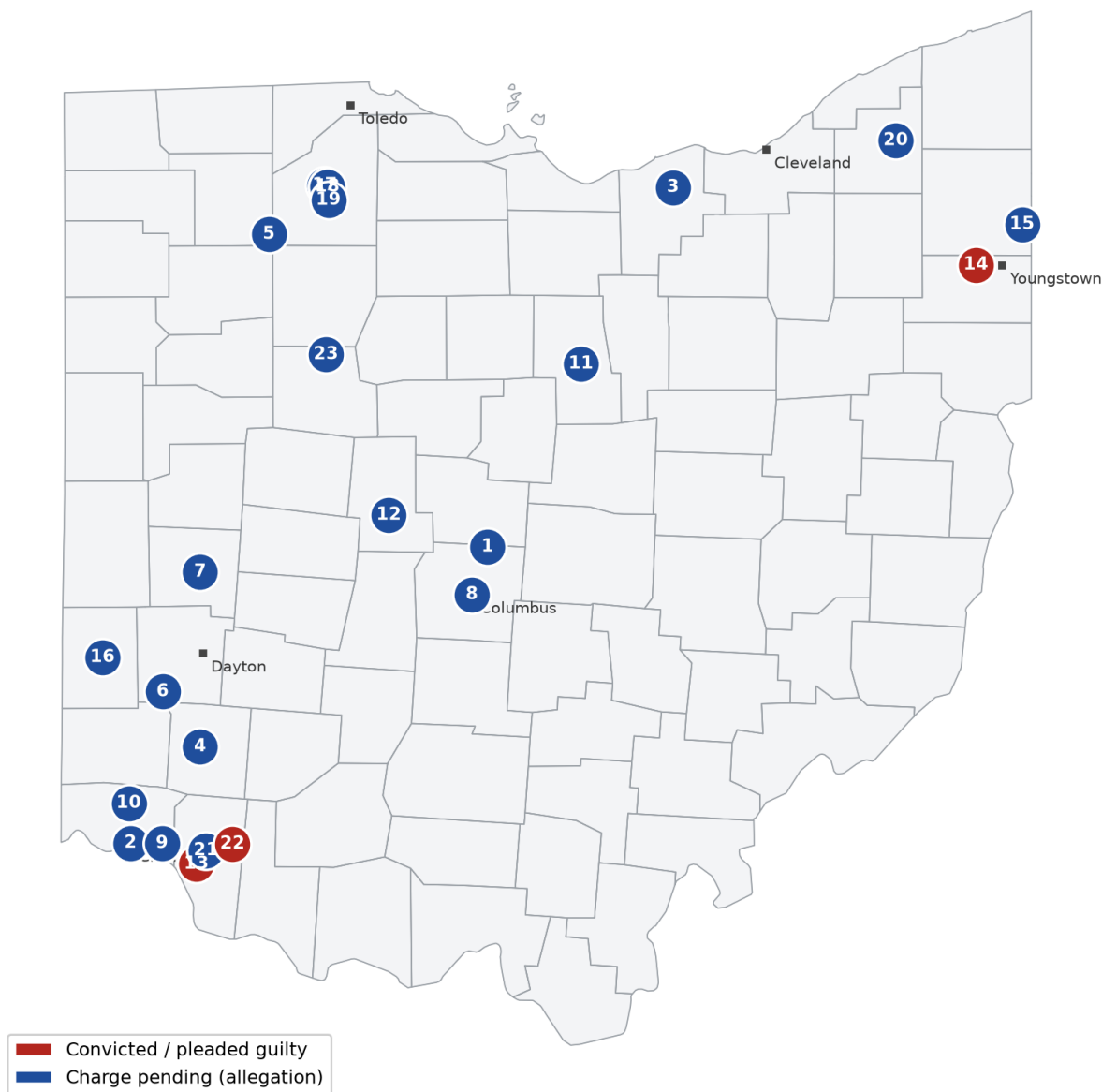
2. The Count

As of October 10, 2026, this brief identifies **23 Ohioans criminally charged with grooming under ORC 2907.071**. Three have been resolved by conviction or guilty plea, including the first person charged under the law; one defendant had his grooming counts dropped as part of a plea to other offenses; the remaining cases are open, and every open charge is an allegation, with each person presumed innocent unless and until proven guilty. There is no official statewide tally of grooming charges (the Ohio Attorney General, BCI, and the prosecutors' association publish none), so this is a thorough case-by-case sweep, not a complete registry. New cases reach county grand-jury dockets regularly, and a separate lower-confidence group (Section 6) shows how often the word "grooming" appears in Ohio cases that do not carry the formal charge.

3. Where the Cases Were Brought

The numbers on the map match the case numbers in Section 4. The pattern is unmistakable: grooming charges cluster in southwest Ohio, with Clermont and Hamilton counties (greater Cincinnati) and Wood County (Bowling Green) accounting for the largest share. This likely reflects which prosecutors have moved fastest to use the new statute, not where grooming occurs.

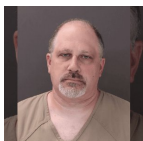
Where Ohio's 23 Grooming-Charge Cases Were Brought



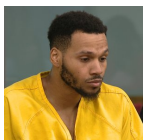
Red = convicted or pleaded guilty. Blue = charge pending (allegation). Numbers correspond to the case list below.

4. The Cases

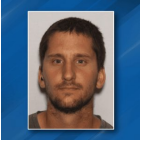
One sentence each. Click the name to open the source story.



1. [Scott Richard Hartman, 49](#), a former senior executive at the Catholic Foundation of Ohio, was indicted in Franklin County in October 2026 on a grooming charge and child sexual-abuse-material counts after a sheriff's ICAC investigation, and has pleaded not guilty.



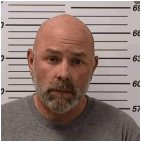
2. [Keylan Behanan, 26](#), a seasonal basketball coach at a Cincinnati charter school, was charged in March 2026 with grooming and two counts of sexual battery involving a minor.



3. [Joshua Telford, 35](#), of Cincinnati, was indicted in Lorain County in February 2026 on grooming and rape charges for allegedly traveling to abuse a 12-year-old, and is held without bond.



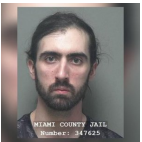
4. [Michael Waldron, 56](#), of Warren County, was arrested in March 2026 after a traffic stop and charged with twelve felony counts including a grooming-related offense (exact statute not confirmed in reporting).



5. [Christopher Walter, 52](#), a Deshler pastor, was indicted in Henry County in June 2026 on grooming and two counts of sexual battery, and has pleaded not guilty.



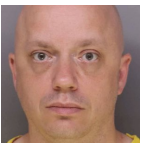
6. [James Ryan Grubbs, 48](#), a former Valley View softball coach in Germantown, was indicted in Montgomery County in 2026 on a grooming count among more than 150 charges tied to alleged spy-camera recordings of girls.



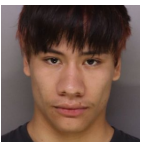
7. [Joshua A. Vanwey, 26](#), of Miami County, was indicted in July 2026 on grooming, child-endangering, and unlawful-sexual-conduct charges, and has pleaded not guilty.



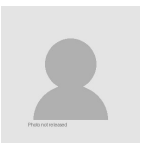
8. [Diego Montoya Gonzales](#) was indicted in Franklin County in August 2026 on grooming, attempted rape, and child-enticement charges tied to alleged TikTok contact with a minor, and has pleaded not guilty.



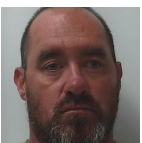
9. [Steven Barton, 43](#), an assistant principal at Cincinnati's Aiken High School, was indicted in 2026 on six counts of sexual battery and two counts of grooming.



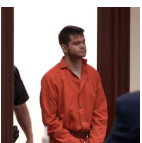
10. [Diego Vanderveen, 19](#), a former Milford High School custodian, was indicted in Hamilton County in September 2026 on grooming and related charges for allegedly posing as a teenager on Snapchat.



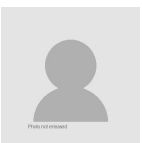
11. [Joshua A. Conley, 39](#), of Richland County, was indicted in September 2026 on grooming alongside human-trafficking and prostitution-related counts.



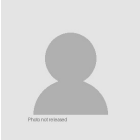
12. [David Joseph Thomas Souza, 44](#), of Marysville, was indicted in Union County in September 2026 on eleven counts including grooming, three counts of rape, and kidnapping, for alleged conduct dating to 2024, and remains jailed.



13. [Christopher Helmer, 18](#), a former Clermont County daycare worker, pleaded guilty to grooming and related charges and was sentenced to nine years in September 2026. **CONVICTED.**



14. [James West, 72](#), of Austintown, pleaded guilty in 2026 to sexual battery and grooming, with sentencing set for November 2026. **PLEADED GUILTY.**



15. [Paul Banovich Jr., 66](#), of Brookfield, was indicted in Trumbull County in April 2026 on two counts of grooming and two counts of importuning.



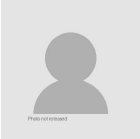
16. [Paul Bingle, 49](#), a Preble County teacher, was indicted on four counts of grooming but pleaded guilty to sexual battery and unlawful sexual conduct after the grooming counts were dropped, receiving thirteen to seventeen years.



17. [Mark H. Barnes, 40](#), of North Ridgeville, was indicted in Wood County in October 2025 on attempted grooming and related counts in a police sting.



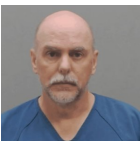
18. [Matthew Rava, 33](#), of Bowling Green, was indicted in Wood County in July 2026 on grooming plus three counts of rape and five counts of sexual battery, and was released on bond.



19. [Pablo Losoya, 41](#), of Portage, was indicted in Wood County in July 2026 on grooming alongside unlawful sexual conduct, pandering, and drug counts, and was held on bond.



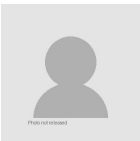
20. [Steven Smetana, 53](#), of Claridon Township in Geauga County, was indicted in Cuyahoga County in May 2026 on grooming plus five counts of rape and gross sexual imposition.



21. [Richard Todd Hauke, 57](#), of Clermont County, was indicted in November 2025 on a 40-count indictment including grooming, rape, and gross sexual imposition involving a child under 13, and is jailed.



22. [James Russell Blair, 40](#), of Jackson Township in Clermont County, was indicted June 24, 2025 — the earliest grooming charge found in Ohio — on 44 counts including two grooming counts, and pleaded guilty, receiving 20 years. **CONVICTED.**



23. [Carlos Rivera-Alejandro, 29](#), of Dunkirk in Hardin County, was indicted in July 2026 on a 48-count indictment including grooming, rape, and sexual battery, and is held on \$750,000 bond.

5. Spotlight: The Bethel Police Chief



Chad Essert, 44, was the sitting **police chief of Bethel**, a village of about 2,800 in Clermont County, when a Clermont County grand jury indicted him on **70 felony counts** (56 counts of sexual battery, 14 counts of unlawful sexual conduct with a minor) on June 11, 2026. He was arrested in Florida, waived extradition, pleaded not guilty, and resigned effective July 9, 2026. The alleged victim was a girl he reportedly met through a youth program, who prosecutors say he began grooming at age 12.

Two things make this case notable. First, the public-trust angle: the man charged with protecting a community stands accused of abusing a child, and the hiring village had access to a record showing he had been fired or forced to resign from several prior police jobs, including one over sexual-harassment texts. The former chief who preceded him publicly called the 2021 hiring "inappropriate." ([Fox19](#), [WCPO](#))

Second, and most relevant here: **Essert was not charged with grooming**, even though prosecutors and headlines use the word freely. The alleged conduct occurred from 2005 to 2010, roughly fifteen years before Ohio's grooming statute existed, so charging it under the new law would violate the constitutional ban on ex-post-facto prosecution. Prosecutors instead relied on the sexual-battery and unlawful-conduct statutes that were on the books at the time. His case is a clean illustration of the line between grooming as a described behavior and grooming as a chargeable crime. ([Clermont County Prosecutor](#))

6. Lower-Confidence Cases: Grooming Described, Not Charged

These Ohio defendants were arrested in cases where the word "grooming" appears in the coverage, but a formal ORC 2907.071 grooming count is not confirmed, usually because the alleged conduct predated the April 2025 law or the case was charged under other statutes. They are included for completeness, at lower confidence, and should not be counted among the 23.

- [Chad Essert, 44](#), the Bethel police chief above: 70 counts of sexual battery and unlawful sexual conduct; grooming described by prosecutors, not charged (conduct 2005–2010).
- [Jordan Wheeler, 26, Franklin County](#): arrested April 2, 2025, one week before the law took effect, and charged with pandering sexually oriented material; "grooming" described his alleged intent but was not a charge.
- [Thomas Andrew Rich, 29, Wood County](#): indicted on gross sexual imposition, importuning, and disseminating matter harmful to juveniles; no grooming count.
- [Mark A. Chandler, 37, Brown County](#): charged federally with sexual exploitation of children and enticement; "groomed" is narrative, not an Ohio grooming count.

7. The Timing Question: Was the Law Used Before It Was Official?

A fair question is whether Ohio began using the grooming charge before the statute formally took effect on April 9, 2025. The short answer is no, but a related and more serious pattern is real.

No charges in the signing-to-effective gap. No one was charged under ORC 2907.071 between the signing (January 8, 2025) and the effective date (April 9, 2025). The one case that looks early, Jordan Wheeler's April 2, 2025 arrest, was a pandering case; grooming was never among his charges.

But the law is being applied backwards. Prosecutors have charged grooming for conduct that allegedly occurred before the statute existed. [James Blair](#) was indicted on grooming counts for abuse reportedly beginning in 2018; David Souza’s grooming count covers conduct from 2024. Charging a brand-new offense for pre-April-2025 conduct raises a textbook ex-post-facto problem under both the Ohio and U.S. Constitutions. No published defense challenge or appellate ruling has tested the issue yet, which means these early grooming counts are either being quietly dropped, pleaded away, or are headed for a constitutional fight. ([Clermont County Prosecutor](#))

The real first case. The earliest grooming prosecution found is James Blair in Clermont County, indicted June 24, 2025, about 76 days after the law took effect. He has since pleaded guilty and been sentenced to 20 years.

8. How This List Was Kept Honest

Many Ohio cases use the word grooming without a formal ORC 2907.071 charge, and those were kept out of the count of 23: cases where the alleged conduct predated the April 9, 2025 law, cases charged in federal court, and an Ohio resident charged under Iowa law. Large multi-agency stings also produced many arrests on other charges, not grooming: Operation Next Door (135 arrests, September 2025), Operation Guardians’ Watch (25, Cuyahoga-led, 2026), and Operation Lifeboat (10, Ottawa County, 2026) brought solicitation, importuning, and prostitution-related counts, not grooming. Every open case here is an allegation; report them as charged, not guilty.

9. Sources and an Ongoing System

Every case above links to its primary source. The richest veins for ongoing tracking are county grand-jury roundups (Clermont, Hamilton, Wood, Franklin, Montgomery, Union, Richland, Trumbull, Preble, Miami, Geauga, Hardin), local television (Fox19/WXIX, Local 12/WKRC, ABC6/WSYX, WKBN, WCPO, 13abc), local papers (Sentinel-Tribune, BG Independent Media, Dayton Daily News, Richland Source, Geauga Maple Leaf, Clermont Sun), and primary law-enforcement and prosecutor sources such as the Franklin County Sheriff’s ICAC task force and the Clermont County Prosecutor. A weekly scrape of those dockets plus a standing alert on “grooming” and “2907.071” would catch most new cases within days.